

Manashi Sethi vs Bimal Kumra Behera & Ors. Opposite ... on 9 November, 2021

Author: Biswanath Rath

Bench: Biswanath Rath

IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP(C) No.235 of 2021

Manashi Sethi		Petitioners
		Mr. A.Ku. Das,
		Advocate

-versus-

Bimal Kumra Behera & Ors.		Opposite Parties
		Ms. D. Mahapatra,
		Advocate

CORAM:
JUSTICE BISWANATH RATH
ORDER

09.11.2021 Order No. I.A. No.364 of 2021

03. 1. This I.A. is filed for modification of the order dated 23.08.2021 passed in TRP(C) No.235 of 2021, but at the instance of the husband involving a Section 9 of the Hindu Marriage Act proceeding.

2. Miss Mahapatra, learned counsel bringing to the notice of the Court the development by the wife bringing in some complaints and threatening even by her counsel during pendency of Section 9 proceeding, contended that such attitude of the wife creates an impediment in husband's agreeing to take back the wife in the main proceeding involved and for the direction contained in paragraph no.5 of the order dated 23.08.2021 there is likelihood of initiation of a criminal proceeding against the husband. She thus prayed this Court for deletion of the condition at paragraph no.5 of the order dated 23.08.2021. She, however, did not dispute that in the event // 2 // there is resolution of the dispute on allowing of the Section 9 proceeding, there is possibility of no necessity of continuing in the other proceeding taken place during such dissention.

3. There is no dispute that the Section 9 application was filed with an intention to take back the wife. This Court also considering that there exists a Section 9 application at the instance of the husband, further recording the clear statement of the learned counsel for the wife that the wife involved is ready and willing to join the husband, consciously passed the order dated 23.08.2021 and has given the following observation in paragraph no.5 of the order dated 23.08.2021:

"5. It is made clear that if after the wife files affidavit showing her willingness to join with the husband and the husband declines to take the wife, a criminal case will be instituted against the husband for filing case with false intention and wasting valuable time of Court."

4. Considering the involvement of wife through some other documents, this Court observes, in such event nothing prevents the husband to lodge appropriate proceeding. In the circumstance, this Court is not satisfied with the reasons asking for modification of order dated 23.08.2021 and the conditions therein, except observing that in the event the wife involved files affidavit agreeing to join the husband in the proceeding under Section 9 of the Hindu Marriage Act, it shall be the duty of the trial court also to record the undertaking of the wife to withdraw all such complaints and proceedings in order to achieve complete reunion between the parties.

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5. With the aforesaid observation the I.A. stands disposed of.

(Biswanath Rath) Judge A.K. Jena